

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----x
WILLIAM JASON DANTZLER,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER BETTS
and POLICE OFFICER "JOHN DOE", first and last
name being fictitious,

Defendants.
-----x

Index No.

Date Filed:

Plaintiff designates: Kings
County as the place of trial

The basis of venue is:
Location of incident

S U M M O N S

Location of incident:
The intersection on Sutter Avenue
and Pennsylvania Avenue
Brooklyn, New York 11207

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney, within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, Judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 05, 2024

REDMOND LAW FIRM, PLLC

By: _____



Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989

Defendants' Addresses:**THE CITY OF NEW YORK**

Comptroller of the City Of New York
Municipal Building
1 Center Street, Room 1225
New York, New York 10007

and

New York City Corporation Counsel
100 Church Street Station, 4th Floor
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza Path
New York, New York 10038

POLICE OFFICER BETTS

c/o The New York City Police Department
1 Police Plaza Path
New York, New York 10038

POLICE OFFICER "JOHN DOE"

c/o The New York City Police Department
1 Police Plaza Path
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
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VERIFIED COMPLAINT

Plaintiff, by his attorneys, REDMOND LAW FIRM, PLLC complaining of the defendants,
all upon information and belief, respectfully states and alleges as follows:

1. At all times herein mentioned, plaintiff, WILLIAM JASON DANTZLER, was and still is a resident at 241 Hoyt Street, Apartment# 7F, County of Kings, City of Brooklyn and State of New York.
2. That at all times herein mentioned, the occurrence that gave rise to this action occurred in the County of New York, City and State of New York.
3. That upon information and belief, at all times herein mentioned, the defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation duly organized and existing under and by the virtues of the laws of the State of New York.
4. That at all times herein mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYCPD") was a public benefit corporation, duly organized and existing under and by virtue of the laws of the State of New York.

5. Within ninety days (90) after the claim herein sued upon arose, the plaintiff, WILLIAM JASON DANTZLER caused a Notice of Claim, in writing, to be served upon defendants, CITY and NYCPD, in accordance with Section 50-e of the General Municipal Law.

6. Although more than thirty (30) days have elapsed since service of such Notice of Claim, defendants, CITY and NYCPD, have neglected and refused to pay said claim or adjust same.

7. A hearing pursuant to General Municipal Law 50-h scheduled.

8. This action is commenced within one (1) year and ninety (90) days from October 6, 2023, the date the accident as herein set forth occurred.

9. That on October 6, 2023, and at all times herein mentioned, the defendant CITY operated the New York City Police Department and employed the officers of said department.

10. That on said date and at all times herein mentioned, the defendant CITY hired the New York City Police Department and employed the officers of said department.

11. That on said date and at all times herein mentioned, the defendant CITY supervised the New York City of Police Department and employed the officers of said department.

12. At all times herein mentioned, defendant, POLICE OFFICER BETTS (hereinafter "BETTS"), was and still is a resident at County of New York, City and State of New York.

13. At all times herein mentioned, defendant, POLICE OFFICER "JOHN DOE" (hereinafter "DOE"), was and still is a resident at County of New York, City and State of New York.

14. That on said date and at all times herein mentioned, the defendant, BETTS, was an officer of the New York City Police Department and employed by the defendant, CITY.

15. That on said date and at all times herein mentioned, the defendant, DOE, was an officer of the New York City Police Department and employed by the defendant, CITY.

16. At times mentioned herein, the officers of the New York City Police Department were acting under the color of law, to wit: the laws, statutes, ordinances, rules, and regulations of the City of New York, State of New York, the United States and the Constitutions of the State of New York and the United States.

**AS AND FOR A FIRST CAUSE OF ACTION FOR WRONGFUL ARREST ON BEHALF
OF PLAINTIFF WILLIAM JASON DANTZLER**

17. Plaintiff WILLIAM JASON DANTZLER repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered 1-16 with the same force and effect as if fully set forth at length herein.

18. That on October 6, 2023, at approximately 03:30 A.M. at the corner of the intersection on Sutter Avenue and Pennsylvania Avenue in Brooklyn, New York, New York 11207, Plaintiff WILLIAM JASON DANTZLER was without investigation, rationale or provocation, restrained and wrongfully and falsely arrested by defendants, BETTS and DOE.

19. The aforesaid was committed by the defendants upon the plaintiff with his awareness and without warrant, probable cause, justification, the plaintiff's consent or privilege of law.

20. The subject NYCPD officers were acting within the scope of their employment as officers of the defendant CITY and acting under the color of law.

21. At no time did WILLIAM JASON DANTZLER resist arrest.

22. That the defendants knew that they did not have probable cause to arrest the plaintiff and that the charges were false.

23. That October 6, 2023, the defendants, their agents, servants, and/or employees, acted with intent to imprison the plaintiff.

24. The force used by the defendants against the plaintiff was excessive and not reasonably necessary.

25. That the Plaintiff, without his consent or just cause, was taken into custody on October 6, 2023, at approximately 03:30 A.M.

26. The plaintiff was denied medication, food, and sanitary facilities and further humiliated, degraded and demeaned, and the plaintiff was severely and seriously injured, suffered, and still suffers and will continue for some time physical, emotional, and mental injuries, and the plaintiff has become sick, sore, lame and disabled and so remain, and upon information and belief, the plaintiff is permanently injured.

27. That the plaintiff continues to receive medical assistance in an effort to heal his injuries and the effects thereof have not been fully determined and cannot be set forth by the plaintiff at this time.

28. As a result of the foregoing by the aforesaid defendants, the plaintiff has suffered serious and permanent physical and psychological injuries, and has been damaged in a sum that exceeds the jurisdictional limits of all lower courts of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR WRONGFUL ARREST,
ASSAULT AND BATTERY ON BEHALF OF PLAINTIFF WILLIAM JASON
DANTZLER**

29. Plaintiff WILLIAM JASON DANTZLER repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-28 with the same force and effect as if fully set forth at length herein

30. That on October 6, 2023, at approximately 03:30 A.M., and while in the custody of the defendants, the Plaintiff WILLIAM JASON DANTZLER was without just cause, probable cause or provocation, and with negligent, and without investigation grabbed, shoved, battered, restrained and arrested in an excessive manner and with excessive force by defendants, BETTS and DOE.

31. That on or about October 6, 2023, and while in the custody of the defendants the plaintiff, WILLIAM JASON DANTZLER, was intentionally grabbed, shoved, battered, restrained, physically attacked, violated, and humiliated, and arrested, in the most egregious and excessive manner by defendants, BETTS and DOE, who was acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

32. Defendants, BETTS and DOE grabbed, shoved, battered, restrained, physically attacked, and arrested WILLIAM JASON DANTZLER over the premises, without any reasonable justification or lawful purpose for the amount of force used. Defendants, BETTS and DOE committed false imprisonment, abuse of process, wrongful arrest, use of excessive force, deprivation of civil liberties, and malicious prosecution.

33. That on or about October 6, 2023, defendants, BETTS and DOE, acting as agents and on behalf of the CITY and NYCPD, within the scope of their employment, intentionally, wilfully, and maliciously physically attacked, grabbed, shoved, battered, restrained and arrested the Plaintiff WILLIAM JASON DANTZLER in the most egregious and excessive matter in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff WILLIAM JASON DANTZLER and their act caused apprehension of such contact in the plaintiff,

and in a hostile and/or offensive manner assaulted the plaintiff and/or offensive bodily contact to the Plaintiff WILLIAM JASON DANTZLER and caused mental and psychological injuries.

34. Upon information and belief, defendants, BETTS and DOE acted pursuant to the NYCPD's continuing custom or practice of condoning NYCPD's Officers' unjustified use of force, because they knew to a virtual certainty that they would not be disciplined for their unlawful use of force against WILLIAM JASON DANTZLER.

35. Upon information and belief, the defendants, BETTS and DOE acted pursuant to the NYCPD's continuing custom or practice of condoning NYCPD Officers' unjustified use of force while effectuating arrests and to penalize individuals for questioning their authority.

36. That by reason of the aforesaid intentional physical attack and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff WILLIAM JASON DANTZLER suffered great and permanent mental and psychological injuries and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

37. That as a result of the aforesaid physical attack, assault, and battery the Plaintiff WILLIAM JASON DANTZLER was caused to sustain serious, severe, painful, and permanent bodily injuries so that he was rendered sick, sore, lame, and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

38. That at all times hereinafter mentioned the actions of CITY, NYCPD, BETTS and DOE as described above were carried out in a deliberate, wilful, wanton, malicious, and grossly negligent manner.

39. That by reason of the foregoing, Plaintiff WILLIAM JASON DANTZLER has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING/SUPERVISION/RETENTION ON BEHALF OF PLAINTIFF WILLIAM
JASON DANTZLER**

40. Plaintiff WILLIAM JASON DANTZLER repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered 1-39 with the same force and effect as if fully set forth at length herein.

41. That the CITY and NYCPD, their agents, servants, and employees were negligent and careless and failed to exercise reasonable care and diligence in the hiring of the officers who committed the aforementioned acts and deprivations on the plaintiff on the aforementioned dates and places, careless in hiring, retaining, training, monitoring, retraining, supervising and promoting their employees including but not limited to defendants, BETTS and DOE, in that said police officers, as employees of CITY and NYCPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYCPD.

42. Prior to said date, and at all times herein mentioned, the defendant NYCPD failed to perform adequate background investigations and interviews of potential employees, agents, and independent contractors; negligently performed investigations and interviews causing the

defendants to hire persons who were incompetent, poorly trained, inexperienced, indolent, lazy, immoral and negligent.

43. Prior to said date, and at all times herein mentioned, the defendant NYCPD failed to use reasonable care in the hiring and employment of its officers in that the defendant failed to ascertain that the police officers, who committed the aforementioned acts and deprivations on the plaintiff, were incompetent to do their work without danger of harm to others.

44. Prior to said date, and at all times here mentioned, the defendant NYCPD had knowledge of facts about the police officers it hired, who committed the aforementioned acts and deprivations on the plaintiff, that would lead a reasonably prudent person to conduct an investigation that could have uncovered the above-stated information about the employees and failed to do so.

45. That the CITY and NYCPD failed to exercise due care and caution in their hiring, retaining, training, and/or promoting practices in that CITY and NYCPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Police Department Guidelines.

46. That by reason of the above, the Plaintiff WILLIAM JASON DANTZLER was injured in mind and body as he was arrested, prosecuted, and rendered sick, sore, and damaged.

47. That at all times hereinafter mentioned the actions of CITY, NYCPD, and all defendants herein as described above were carried out in a deliberate, wilful, wanton, malicious, and grossly negligent manner.

48. That by reason of the foregoing, Plaintiff WILLIAM JASON DANTZLER has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOUR CAUSE OF ACTION FOR VIOLATION OF
CONSTITUTIONAL RIGHTS ON BEHALF OF PLAINTIFF WILLIAM JASON
DANTZLER**

49. Plaintiff WILLIAM JASON DANTZLER repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered 1 - 48 with the same force and effect as if fully set forth at length herein.

50. At all times mentioned herein and above, Defendants CITY and NYCPD employed defendants, BETTS and DOE as police officers and were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs, and usage of the State of New York and/or City of New York.

51. Plaintiff WILLIAM JASON DANTZLER is and at all times relevant herein, a citizen of the United States and a resident of Kings County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

52. That on or about October 6, 2023, Defendants CITY, NYCPD, BETTS and DOE, without probable cause, reasonable cause, or legal justification, did physically attack, commit battery, and grab the Plaintiff WILLIAM JASON DANTZLER without a court-authorized arrest warrant or search warrant and defendants did physically attack Plaintiff WILLIAM JASON DANTZLER in an unlawful and excessive manner.

53. That on the aforementioned dates and places, the above actions of the defendants, BETTS and DOE, acting within the scope of their employment as NYCPD officers, under the laws, statutes, rules, and regulations of the City of New York, State of New York, the United States and the Constitution of the United States did violate and deprive the rights, privileges and/or immunities of the plaintiff in the following respects:

- i. Freedom from assault;
- ii. Freedom from battery;
- iii. Freedom from illegal search and seizure;
- iv. Freedom from false arrest;
- v. Freedom from malicious prosecution;
- vi. Freedom from the use of excessive force during the arrest process;
- vii. Freedom from unlawful imprisonment;
- viii. Freedom from summary punishment;
- ix. Freedom from cruel and unusual punishment;
- x. Freedom from loss of liberty; and
- xi. Freedom from illegal search.

54. In addition to the above, Defendants CITY and NYCPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct their police officers, including the officers involved in this case and any and all unnamed officers involved in the physically attacking and battery of plaintiff, regarding the protection of the constitutional rights of citizens.

55. Defendants CITY, NYCPD, BETTS and DOE, subjected Plaintiff WILLIAM JASON DANTZLER to such deprivation in a malicious, deliberate, intentional, grossly negligent, and with a callous disregard of Plaintiff WILLIAM JASON DANTZLER's rights and with deliberate indifference to the United States Constitution.

56. The direct and proximate result of the Defendants CITY, NYCPD, BETTS and DOE acts is that Plaintiff WILLIAM JASON DANTZLER has suffered severe and permanent injuries, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

57. That by reason of the foregoing, Plaintiff WILLIAM JASON DANTZLER has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state of the State of New York, together with said attorney's fees and costs incurred in prosecuting this action.

CLAIM FOR PUNITIVE DAMAGES

58. The Plaintiff makes a claim for punitive damages against the defendants in this action.

WHEREFORE, the plaintiff demands judgment against the defendants in an amount which exceeds the jurisdictional limits of the lower courts of the State of New York, together with the costs and disbursements of this action.

Dated: New York, New York
March 05, 2024

REDMOND LAW FIRM, PLLC

By: _____

Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989

VERIFICATION

STATE OF NEW YORK }

} ss:

COUNTY OF NEW YORK }

I, the undersigned, an attorney duly admitted to practice law in the State of New York, state that I am a member of the firm REDMOND LAW FIRM, PLLC, attorneys of record for the plaintiff in the within action; I have read the foregoing

COMPLAINT

and know the contents thereof; the same is true to my own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters, I believe to be true. The reason this verification is made by me and not by the plaintiff is that deponent maintains offices outside the County in which plaintiff resides.

The grounds of my belief as to all matters not stated upon my knowledge, are as follows: entire file maintained in your deponent's offices, investigations, etc.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
March 05, 2024

By: 
Cornelius Redmond, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

WILLIAM JASON DANTZLER,

Plaintiff,

-against-

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OFFICER BETTS and POLICE OFFICER "JOHN DOE", first and last name being fictitious,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

REDMOND LAW FIRM, PLLC
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989

Pursuant to 22NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts
of New York State, certifies that, upon information and belief and reasonable inquiry, the
contentions contained in the annexed document are not frivolous



CORNELIUS REDMOND, ESQ.
REDMOND LAW FIRM, PLLC

[] Notice of Entry

that the within is a (certified) true copy of a
duly entered in the Office of the Clerk of the within named court on

20

[] Notice of Settlement

that an order of which the within is a true copy
will be presented to the Hon. one of the judges of the within court at

on 20 at M.

Dated:

Yours, etc.

REDMOND LAW FIRM, PLLC
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989